

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Civil Revision No.3931 of 2005

IN THE MATTER OF

An application under section 115(4) of the Code of
Civil Procedure

-And-

IN THE MATTER OF

Md. Sirajul Islam and others ... Plaintiff-Petitioners

-Versus-

Ali Ahmad and others Defendant-Opposite parties

None appears For both the parties.

Heard and Judgment on: 28.06.2022

Present:

Mr. Justice Shahed Nuruddin

This application under section 115(4) of the Code of Civil Procedure, 1908 is directed against judgment and order dated 25.04.2005, passed by the learned Court of Special District Judge, Cumilla, in Civil Revision No. 4 of 2005, affirming the judgment and order No. 102 dated 04.04.2004, passed by the learned Senior Assistant Judge, Sadar Court, Cumilla, in Title Suit No. 217 of 1999, accepting the Report dated 19.06.2003 submitted by the learned Advocate Commissioner, and making the said Report dated 19.06.2003 as part of final decree.

This Hon'ble Court vide order dated 31.08.2005 upon granting leave issued Rule and stayed all further proceedings of Title Suit No. 217 of 1999.

On perusal of the Civil Revisional Application and all the annexures annexed therewith, it appears that the suit was a suit for partition. The suit was decreed and no appeal has yet been preferred against the judgment and decree.

Heard the learned Advocates, perused the Civil Revisional Application, Report dated 19.06.2003, submitted by the learned Advocate Commissioner and the judgment and order of the learned Trial Court and learned Special District Judge, Cumilla.

It appears to me that the sole issue which is to be adjudicated upon in the Revision is that while preparing map and allocating the *saham* of the land and thereby, preparing Report dated 19.06.2003, the learned Advocate Commissioner took into consideration 35 decimals of land out of total area of 36 decimals of land. It is clear from the Report dated 19.06.2003 and also findings of both the lower Courts that for avoiding protraction of the suit, all the parties of the suit consented that demarcation of suit land is to be made deducting 1 (One) decimal of land out of 36 decimals of land. In fact, in actual measurement 35 decimals of land was found. Due to deduction of 1 (One) decimal land, the *saham* of all the parties was proportionately deducted.

Since the plaintiff-petitioner consented to the deduction of 1 (One) decimal land, they are now estopped from challenging the same. Under the

provision of section 96(3) of the Code of Civil Procedure, 1908, no appeal shall lie against the judgment and decree of any Court, which is passed on the consent of the parties. The present application, though not an appeal, however applying the doctrine of *pari materia*, it can very safely be said that the plaintiff-petitioner cannot challenge the order passed by the learned lower Courts, moreso, when the said Report is made part of the final decree.

Before parting with, I would like to rely upon the consistent view of the Apex Court of the country that the Revisional Court cannot disturb the concurrent findings of facts unless the Court below misread the evidence and misconstrued the document which is also resonated in a very recent judgment reported in 74 DLR (AD) 161 (Para 16).

Accordingly, Rule issued in the instant Civil Revision is discharged, however, without any order as to cost.

The ad-interim order of stay granted earlier by this Court is hereby vacated.

Send a copy of the judgment to the learned Court below at once.